

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 02/10/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-01278

CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. JOHN DOE

*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE

FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The Motion is unopposed and service was completed on counsel for Defendants.

Defendants filed an Answer to Plaintiff's Complaint on 5/21/24.

The court granted Plaintiff's request for Admissions to be Deemed True on 8/19/24.

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that Defendant admits all statements in the complaint are true and that Defendant owes the alleged debt.

While Plaintiff addressed more than one cause of action in their Motion, this court notes that

there is only one cause of action (Breach Of Contract) listed in the Complaint.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Subrogation, with an underlying cause of action of negligence. Plaintiff alleged damages of \$7,386.40.

Defendant’s Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered 8/20/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$7,386.40 . See Deemed Admitted Order.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

While the Defendant pled denials and defenses by way of the Answer, Defendant failed to raise those issues timely in response to the requests for admissions and the Deemed Admitted Order has been made by the Court and has not been set aside. Nor has Defendant opposed this Motion for Judgment on the Pleadings.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint, on its face and considering the Deemed Admitted Order, states facts sufficient to constitute causes of action against the Defendant for Negligence and Subrogation.
2. The Court further finds that the pleadings, in light of the Deemed Admitted Order, do not state facts sufficient to constitute a defense to the Complaint
3. Defendant caused damages in the amount of \$7,386.40, which amount is due and owing to Plaintiff.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file electronically the Order for signature.

Should any party contest the above tentative ruling the hearing will be conducted on February 17th at 9:00 a.m.

**2. 9:00 AM CASE NUMBER: L24-03014
CASE NAME: CAPITAL ONE, N.A. VS. KAREN JEFFERSON**

***HEARING ON MOTION IN RE:**

FILED BY:

TENTATIVE RULING:

Not on Calendar. This will be dropped.

3. 9:00 AM CASE NUMBER: L24-05325

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. MARK DAVID

***HEARING ON MOTION IN RE: MTN TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT**

FILED BY PLN ON 11/12/25

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to Set Aside Notice of Settlement and enter judgment pursuant to stipulation. The Motion and its additional documents were filed in a timely manner.

This Motion is unopposed, and mail service was completed at the address where the Defendant was personally served with the Complaint.